SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 200 of 2024 (YEAR: 2024)

CORAM: B.R. GAVAI, K.V. VISWANATHAN

Manish Sisodia
... Appellant(s) / Petitioner(s)
Versus
Directorate of Enforcement
... Respondent(s)

Acts Referred:	Prevention of Money Laundering Act, 2002, Constitution of India
Sections:	Section 45 PMLA, Article 21

JUDICIAL HEADNOTE & SUMMARY

Ruled that where an accused has suffered prolonged custody and trial delay without fault, constitutional liberty under Article 21 takes precedence over statutory bail restrictions under Section 45 PMLA.

RATIO DECIDENDI

The Court held that: Ruled that where an accused has suffered prolonged custody and trial delay without fault, constitutional liberty under Article 21 takes precedence over statutory bail restrictions under Section 45 PMLA. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Manish Sisodia v. Directorate of Enforcement (Criminal Appeal No. 200 of 2024) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Prevention of Money Laundering Act, 2002, Constitution of India, particularly Section 45 PMLA, Article 21. Ruled that where an accused has suffered prolonged custody and trial delay without fault, constitutional liberty under Article 21 takes precedence over statutory bail restrictions under Section 45 PMLA.

OPERATIVE ORDER

ORDER: Decided